dustry, as defined in § 522.21 (b), (c), (d), (e), and (f).

(Sec. 14, 52 Stat. 1068, as amended; 29 U. S. C. 214)

These amendments shall take effect November 3, 1958.

Signed at Washington, D. C., this 30th day of September 1958.

CLARENCE T. LUNDQUIST,
Administrator.

[F. R. Doc. 58-8176; Filed, Oct. 3, 1958; 8:45 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter I—Coast Guard, Department of the Treasury

Subchapter C—Aids to Navigation

[CGFR 58-34]

PART 67—PRIVATE AIDS TO NAVIGATION, OUTER CONTINENTAL SHELF AND WATERS UNDER THE JURISDICTION OF THE UNITED STATES

MISCELLANEOUS AMENDMENTS

The purpose of the following amendments to the regulations is to clarify that part of the regulations relating to the display and visibility of lights required on private aids to navigation on the outer continental shelf and waters under the jurisdiction of the United States.

By virtue of the authority vested in me as Commandant, United States Coast Guard, by Treasury Department Orders Nos. 167-3 (18 F. R. 2962) and 167-23 (21 F. R. 5852) to promulgate regulations in accordance with the statutes cited with the regulations below, the following amendments to the regulations are prescribed which shall become effective upon the date of publication of this document in the FEDERAL REGISTER.

SUBPART 67.05—GENERAL REQUIREMENTS FOR LIGHTS

Section 67.05-15 is amended to read as follows:

§ 67.05-15 *Operating periods of obstruction lights.* Obstruction lights shall be displayed at all times between the hours of sunset and sunrise, local time, commencing at the time the construction of a structure is begun. During construction and until such time as a platform capable of supporting the obstruction lights is completed, the fixed lights on an attending vessel shall be used. In addition, when lights are in use for general illumination to facilitate the construction or operation of a structure, and can be seen from any angle of approach at a distance equal to that prescribed for the obstruction lights for the class of structure, the actual operation of obstruction lights also will not be required.

SUBPART 67.20—CLASS "A" REQUIREMENTS

Section 67.20-5 is amended to read as follows:

§ 67.20-5 *Obstruction lights.* The obstruction lights shall be white lights as prescribed in Subpart 67.05 of this part. The lights shall be of sufficient candlepower as to be visible at a distance of at least five nautical miles 90 percent of the nights of the year. The lights shall be displayed not less than 20 feet above mean high water, but not at a height greater than that specified in § 67.05-1 (f).

SUBPART 67.25 CLASS "B" REQUIREMENTS

Section 67.25-5 is amended to read as follows:

§ 67.25-5 *Obstruction lights.* (a) The obstruction lights shall be white lights as prescribed in Subpart 67.05 of this part and shall be of sufficient candlepower as to be visible at a distance of at least three nautical miles 90 percent of the nights of the year. The lights shall be displayed not less than 20, nor more than 60 feet, above mean high water, except that on Class "B" structures which are required to be marked by only one light, that light may be displayed not less than 10 feet above mean high water if the structural features preclude mounting the light within the range of heights specified above.

(b) The District Commander may waive the requirement for obstruction lights on Class "B" structures if there is no hazard to navigation by so doing.

SUBPART 67.30—CLASS "C" REQUIREMENTS

Section 67.30-5 is amended to read as follows:

§ 67.30-5 *Obstruction lights.* (a) The obstruction lights shall be white or red lights as prescribed in Subpart 67.05 of this part and shall be of sufficient candlepower as to be visible at a distance of at least one nautical mile 90 percent of the nights of the year. The lights shall be displayed at such height, above mean high water, as shall be prescribed by the District Commander. When the District Commander shall authorize red lights to mark a Class "C" structure, the color thereof shall conform to the shade of red prescribed in Military Specification Mil-C-25050 (ASG), Type 1, Grade D. A copy of the specification may be obtained from the Bureau of Supplies and Accounts, Department of the Navy, Washington 25, D. C.

(b) When Class "C" structures are erected in close proximity to each other, or are connected in such a manner as to prevent marine traffic from passing freely through the field, obstruction lights may be authorized to mark the perimeter structures only, when in the judgment of the District Commander the group of structures which are equipped with obstruction lights are so arranged that the particular structures are protected to the degree required by this part, and are not a hazard to navigation.

(c) Unless advised to the contrary by the District Commander, obstruction lights shall be required on Class "C" structures erected in depths of water greater than 3 feet at mean low water.

(d) In cases where, although not required, an applicant desires to establish and operate obstruction lights, a permit therefor shall be granted, at the discretion of the District Commander: *Provided*, That the lights meet the requirements set forth in this part.

(Sec. 92, 63 Stat. 503, as amended; 14 U. S. C. 92)

Dated: September 25, 1958.

[SEAL] A. C. RICHMOND,
Vice Admiral,
U. S. Coast Guard,
Commandant.

[F. R. Doc. 58-8185; Filed, Oct. 3, 1958; 8:47 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1738]

[1373468]

CALIFORNIA

PARTIALLY REVOKING THE EXECUTIVE ORDER OF JANUARY 26, 1867 AND EXECUTIVE ORDER NO. 2750 OF NOVEMBER 5, 1917, WHICH RESERVED BODEGA AND REDDING ROCKS, RESPECTIVELY, FOR LIGHTHOUSE PURPOSES

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The Executive order of January 26, 1867, which reserved for lighthouse purposes Bodega Rock, off Bodega Head, in unsurveyed T. 5 N., R. 11 W., M. D. M., California, and Executive Order No. 2750 of November 5, 1917, which reserved for similar purposes Redding Rock, reported on U. S. Coast and Geodetic Survey Chart No. 5800 as being in approximate latitude 41°20' N., longitude 124°10' W., which, if surveyed would probably be in Section 7, T. 11 N., R. 1 E., H. M., California, are hereby revoked so far as they affect the areas described in this paragraph.

2. The rocks are subject to Executive Order No. 5326 of April 14, 1930, which withdrew all unreserved islands, rocks, and pinnacles situated in the Pacific Ocean, off the Coast of California, for classification and in aid of legislation.

FRED G. AANDAHL,
Assistant Secretary of the Interior.

SEPTEMBER 29, 1958.

[F. R. Doc. 58-8175; Filed, Oct. 3, 1958; 8:45 a. m.]

TITLE 31—MONEY AND FINANCE: TREASURY

Subtitle A—Office of the Secretary of the Treasury

PART 3—CLAIMS REGULATIONS

MISCELLANEOUS AMENDMENTS

1. Paragraph (d) of § 3.22 of Title 31 is amended to delete the cross reference to § 3.60. Paragraph (d) of § 3.22 as revised reads as follows:

(d) Any claim arising in respect of the assessment or collection of any tax

or customs duty, or the detention of any goods or merchandise by any officer of customs or excise or any other law-enforcement officer.

2. Section 3.60 of Title 31 is amended to change the example of the type of claim which will be considered under the provisions of the Small Claims Act. Section 3.60 as revised reads as follows:

§ 3.60 *General.* The act of December 28, 1922, 42 Stat. 1060, the so-called Small Claims Act, authorized the head of each department and establishment to consider, ascertain, adjust, and determine claims of $1,000 or less for damage to, or loss of, privately owned property caused by the negligence of any officer or employee of the Government acting within the scope of his employment. The Federal Tort Claims Act superseded the Small Claims Act with respect to claims that are allowable under the former act. Therefore, claims that are not allowable under the Federal Tort Claims Act, for example, claims arising abroad, are allowable under the Small Claims Act.

(R. S. 161, Sec. 2, 42 Stat. 1066, 57 Stat. 372, as amended; 5 U. S. C. 22, 31 U. S. C. 215, 223b-d)

[SEAL] FRED C. SCRIBNER, Jr.,
Acting Secretary of the Treasury.

[F. R. Doc. 58-8186; Filed, Oct. 3, 1958; 8:47 a. m.]

TITLE 46—SHIPPING

Chapter II—Federal Maritime Board, Maritime Administration, Department of Commerce

Subchapter B—Regulations Affecting Maritime Carriers and Related Activities

[Gen. Order 61, 2d Rev., Amdt. 4]

PART 221—DOCUMENTATION, TRANSFER OR CHARTER OF VESSELS

DECLARATION OF OFFICER OF INCORPORATED COMPANY

Paragraph (f) of § 221.11 is hereby amended to read as follows:

(f) Form MA-4562 for execution by a corporation falling within the purview of Public Law 85-902 (72 Stat. 1736) shall read as follows:

Form MA-4562

U. S. DEPARTMENT OF COMMERCE, MARITIME ADMINISTRATION

OWNER OF VESSEL

(Section 40, Shipping Act, 1916, as amended)

U. S. C., Title 46, Sec. 838, 40 Stat. 902, 62 Stat. 212

DECLARATION OF OFFICER OF INCORPORATED COMPANY [1]

This declaration is filed in accordance with the provisions of Public Law 85-902 (72 Stat. 1736).

I, ----------, of ----------, declare that I am a duly authorized officer of the ----------, a corporation organized under the laws of the State of ----------, with offices at ----------; that said corporation is the owner of the vessel, or part thereof, or interest therein, called ----------, of ----------; official number ----------, gross ----------, net ----------, built in 19--, at ---------- as appears by ---------- No. ------, issued at ----------, on ----------, 19--, surrendered ----------;
(Give cause of surrender)

that I am a citizen of ----------;
that a majority of the officers and directors of said corporation are citizens of the United States of America; that not less than 90 per centum of the employees of said corporation are residents of the United States of America; that said corporation is engaged primarily in a manufacturing or mineral industry in the United States of America or any Territory, District, or possession thereof; that the aggregate book value of the vessels owned by said corporation does not exceed 10 per centum of the aggregate book value of the assets of said corporation; and that said corporation purchases or produces in the United States of America, its Territories, or possessions, not less than 75 per centum of the raw materials used or sold in its operations.

(Date)

(Signature and Title)

Penalty for false statement. Section 40, Shipping Act, 1916, as amended, provides "Whoever knowingly makes any false statement of a material fact in any such declaration shall be guilty of a misdemeanor and subject to a fine of not more than $5,000, or to imprisonment for not more than five years, or both."

[1] This declaration is to be taken whenever any bill of sale or conveyance of any vessel, or part thereof, or interest therein, is presented by corporations within the purview of Public Law 85-902 (72 Stat. 1736) to any collector of customs for recording.

If more than one vessel is involved, only one form of declaration need be filed if by a notation inserted in the clause immediately prior to the clause about the citizenship of declarant, appropriate reference is made to a schedule added to said declaration, in which schedule shall be inserted the name and data of each additional vessel as required for the first vessel, owned by the party on behalf of whom said declaration is made.

(Sec. 204, 49 Stat. 1987, as amended; 46 U. S. C. 1114. Interprets or applies Pub. Law 85-902, 85th Cong.)

By order of the Maritime Administrator.

[SEAL] GEO. A. VIEHMANN,
Assistant Secretary.

[F. R. Doc. 58-8229; Filed, Oct. 3, 1958; 8:51 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE TREASURY

Office of the Secretary

[31 CFR Parts 10, 12, 13, 14]

PRACTICE OF ATTORNEYS AND AGENTS BEFORE THE INTERNAL REVENUE SERVICE

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given, pursuant to section 4 of the Administrative Procedure Act, 60 Stat. 238 (5 U. S. C. 1003), that the regulations set forth in tentative form below are proposed to be prescribed by the Secretary of the Treasury. Prior to the final adoption of such regulations, consideration will be given to any data, views, or arguments pertaining thereto which are submitted in writing in duplicate to the Commissioner of Internal Revenue, attention Director of Practice, Washington 25, D. C., within the period of 30 days from the date of publication of this notice in the FEDERAL REGISTER. The proposed regulations are to be issued under the authority contained in section 3 of the Act of July 7, 1884, 23 Stat. 258 (5 U. S. C. 261), Reorganization Plan No. 26 of 1950, section 161 of the Revised Statutes (5 U. S. C. 22), the Administrative Procedure Act, 60 Stat. 237 as amended (5 U. S. C. 1001 to 1011).

At a subsequent date a further notice of proposed rule making will be published regarding an addition to § 10.7 (a) of these proposed regulations.

[SEAL] FRED C. SCRIBNER, Jr.,
Acting Secretary of the Treasury.

OCTOBER 1, 1958.

Parts 10, 12, 13 and 14 of Title 31 of the Code of Federal Regulations, comprising Treasury Department Circular No. 230, as amended, are consolidated and reconstituted Part 10 of such title, and as consolidated and reconstituted are amended to read as follows:

Sec.
10.0 Scope of part.

Subpart A—Rules Governing Authority To Practice

10.1 Director of practice.
10.2 Regulation of practice.
10.3 Eligibility for enrollment.
10.4 Ineligibility for enrollment.
10.5 Application for enrollment.
10.6 Enrollment.
10.7 Practice without enrollment.
10.8 Customhouse brokers.

Subpart B—Duties and Restrictions Relating to Enrolled Attorneys and Agents

10.20 Loss of status.
10.21 Ethics.
10.22 Information to be furnished.
10.23 Knowledge of client's omission.
10.24 Diligence as to accuracy.
10.25 Moneys received from or for a client.
10.26 Endorsement of client's checks.
10.27 Prompt disposition of pending matters.
10.28 Assistance from unenrolled persons.
10.29 Employees of accounting corporations.
10.30 Certain partnerships prohibited.
10.31 State officers and employees.
10.32 Practice by former Government employees.
10.33 Practice by former Internal Revenue Service employees.
10.34 Assisting former employees.
10.35 Enrollees as notaries.
10.36 Attempting to obtain information.
10.37 Fees.
10.38 Solicitation and advertising.
10.39 Rights and duties of agents.

Subpart C—Rules Applicable to Disciplinary Proceedings

10.50 Authority to disbar or suspend.
10.51 Disreputable conduct.
10.52 Violation of regulations.
10.53 Authority to reprimand.